

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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NELLY PILIER-MONTES,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD POLICE OFFICER
EDWARD LUCERO, Shield No. 12992, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

Plaintiff designates Bronx
County as the place of trial.

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
November 23, 2021

Yours, etc.

Cary London
Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER EDWARD LUCERO, SHIELD NO. 12992, 40th Precinct;
257 Alexander Avenue, Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

NELLY PILIER-MONTES,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
EDWARD LUCERO, Shield No. 12992, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff NELLY PILIER-MONTES, by her attorneys, Shulman-Hill, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On March 25, 2021, at approximately 6:30 p.m., plaintiff NELLY PILIER-MONTES, while lawfully in the vicinity of 2535 3rd Avenue in Bronx, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff missed work as a result of this incident, causing her to suffer significant financial loss as well as mental and emotional injury. Plaintiff was unlawfully imprisoned at the 40th Precinct Police Station and Bronx County Central Bookings for approximately 24 hours before she appeared before a judge and was released on her own recognizance. Plaintiff was denied the right to due process and a fair trial for false charges, which were dismissed and sealed on or around May 11, 2021. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, subjected to excessive force, falsely arrested, falsely imprisoned, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff NELLY PILIER-MONTES is a resident of the state of New York.
3. NYPD POLICE OFFICER EDWARD LUCERO, SHIELD NO. 12992, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD POLICE OFFICER EDWARD LUCERO, SHIELD NO. 12992, was at all times relevant herein, assigned to the 40th Precinct.
5. NYPD POLICE OFFICER EDWARD LUCERO, SHIELD NO. 12992, is being sued in his individual and official capacities.
6. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 40th Precinct.
8. NYPD POLICE OFFICERS JOHN DOE NUMBERS 1-10 are being sued in their individual and official capacities.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
11. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on July 29, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On March 25, 2021, at approximately 6:30 P.M., Plaintiff was lawfully present in the vicinity of 2535 3rd Avenue in Bronx, New York, when the defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. Plaintiff had met up with a few friends for drinks after work at a pop-up event located at 2535 3rd Avenue in the Bronx.

18. The plaintiff and her friends had barely been inside for ten minutes when approximately fifteen defendant officers burst into the event space and told everyone to get down on the floor and show identification; the plaintiff complied fully and immediately.

19. It was at this point that the defendant NYPD officers began to unlawfully arrest the plaintiff, restraining her with plastic zip-tie handcuffs and subjecting her to an unlawful pat-down search.

20. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

21. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

22. Plaintiff did not resist arrest.

23. The Defendant Officers then placed the Plaintiff in the back of an NYPD vehicle and transported her against her will to the 40th Precinct, where she was unlawfully fingerprinted, photographed, searched, and placed in a holding cell.

24. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

25. Shortly after her arrival at the 40th Precinct, the plaintiff was transported to Bronx County Central Bookings, where she was fingerprinted, photographed, and detained in a cell overnight.

26. The defendant police officers provided the Bronx County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

27. Specifically, the defendant police officers falsely stated to the Bronx County District Attorney's Office that the plaintiff was guilty of Criminal Possession of a Controlled Substance.

28. On March 26, 2021, after approximately 24 hours in custody, the Plaintiff appeared in criminal court and was released on her own recognizance.

29. Due to her arrest and the pending felony charges, the plaintiff missed three days of work, and her hours were thereafter significantly reduced.

30. The charges which were falsely made against the Plaintiff by the defendant officers were dismissed outright and sealed on or around May 11, 2021.

31. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

32. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

33. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under

the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

35. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

42. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning, and frisk employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Unlawful Search

48. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search Plaintiff.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights**Denial of Right to Fair Trial/Due Process**

55. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

57. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

59. In withholding/creating false evidence against Plaintiff NELLY PILIER-MONTES, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, Plaintiff NELLY PILIER-MONTES sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, loss of earnings, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to financial, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION**Violation of Plaintiff's Fourth And Fourteenth Amendment Rights**

64. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants by, amongst other things, tightly handcuffing her, constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

67. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff, NELLY PILIER-MONTES. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

73. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

75. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION**Failure to Intervene**

76. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, she was put in fear for her safety, and she was humiliated and subject to unlawful search and other physical constraints.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

84. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

86. Defendants commenced and continued a criminal proceeding against the plaintiff.

87. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for the charges for which she was prosecuted.

88. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

89. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

90. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional, economic, and psychological injuries.

JURY DEMAND

93. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff NELLY PILIER-MONTES demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

DATED: New York, New York
November 23, 2021

Yours, etc.

Cary London

Cary London, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007

NYPD POLICE OFFICER EDWARD LUCERO, SHIELD NO. 12992, 40th Precinct;
257 Alexander Avenue, Bronx, NY 10454

ATTORNEY'S VERIFICATION

CARY LONDON, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York

November 23, 2021

Cary London

CARY LONDON